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Personnel

FLEXIBLE WORK SCHEDULE WITH CREDIT HOURS AND COMPRESSED WORK SCHEDULE

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This United States Air Forces in Europe (USAFE) Instruction implements Air Force Instruction (AFI) 36-807, *Weekly and Daily Scheduling of Work and Holiday Observances.* It establishes policies and procedures for a Flexible Work Schedule (FWS) with the Credit Hours Option and Compressed Work Schedule (CWS) for all US civilian employees within Headquarters (HQ) USAFE directorates and Third Air Force (3 AF) only. The purpose of this instruction is to provide guidance regarding the manner in which the credit hours are requested and approved and explain key terms. System of records notice F065 AF A, Time and Attendance Feeder Records (October 14, 2003, 68 FR 59167) applies. This publication does not apply to Air Force Reserve Command (AFRC) Units or the Air National Guard (ANG). Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual (AFMAN) 33-363, *Management of Records*, and disposed of in accordance with the AF Records Disposition Schedule (RDS) located in Air Force Records Information Management System (AFRIMS): **https://www.my.af.mil/afrims/afrims/afrims/rds/rds_series.cfm**.

SUMMARY OF CHANGES

This instruction has been revised to eliminate 17 AF as a covered unit and includes CWS as an Alternative Work Schedule (AWS) program option. Formatting has been substantially changed to distinguish the elements of Standard Tour of Duty, FWS and CWS.

1. General. Alternative Work Schedule (AWS) programs enable managers and supervisors to meet their program goals while allowing employees to be more flexible in scheduling their personal activities. As employees gain greater control over their time, they can balance work and family responsibilities more easily, become involved in volunteer activities, and take advantage of educational opportunities. All US civilian employees in the HQ units and comparable staff offices are eligible to participate in a FWS with the credit hours option and CWS unless there is a mission requirement that bars their participation. FWS and CWS participation is voluntary, not mandatory, on the part of employees.

2. Standard Tour of Duty. The standard tour of duty in HQ units and comparable staff offices is 0730-1630, for five 8-hour days, Monday through Friday. Employees who do not opt to be placed on a FWS or CWS are expected to work the standard tour of duty. Lunch period is a minimum of 30 minutes but may be extended up to 120 minutes (using 15-minute increments) to participate in health and wellness activities, or attend to personal activities. The employee's arrival or departure time is adjusted to accommodate the longer lunch period. Employees cannot work through a lunch period to shorten a workday.

2.1. **Flexible Work Schedule.** Organizational core hours are 0900-1500 when an employee must be at work or in an approved leave status. In a FWS, an employee can request his/her own arrival/departure time within the confines of an organization's core hours. Meaning, an employee may start work as early as 0600, or at 15-minute intervals thereafter. The regular duty day may not end earlier than 1500. End time is computed by adding 8 hours, plus the scheduled lunch period, to the start time. Workday start/stop times may vary to accommodate the employees personal preference if approved by the supervisor. Employees selecting start/stop times under FWS must continue to adhere to these times. Additional changes to start/stop times must be requested by the employee and approved by their supervisor. In all cases, supervisors must ensure adequate coverage exists in the office when office hours are directed.

2.1.1. **Credit Hours.** Credit hours can only be earned by employees participating in a FWS.These are hours an employee elects to work in excess of his or her basic work requirement so as to vary the length of a workweek or workday. Per the Office of Personnel Management Handbook on AWS, the accumulation of credit hours is limited to a maximum of 24 hours between pay periods. Hours earned in excess of this amount are lost. Credit hours may be worked on weekends or holidays (outside of the normal duty hours which qualify for holiday premium pay) Credit hours should not be used to establish a recurring non-workday. Credit hours are requested by an employee, rather than directed by management as is the case with overtime. There is no prohibition against the working of overtime hours, and the earning of credit hours, in the same biweekly pay period; however, credit hours may not be used by an employee to create or increase entitlement to overtime pay.

2.2. **Overtime and Compensatory Time. For employees who work the Standard Tour of Duty or FWS,** overtime work means work in excess of 8 hours in a day or in excess of 40 hours in an administrative workweek, that is--(1) officially ordered or approved and (2) performed by an employee. Hours of work in excess of 8 hours in a day are not included in computing hours of work in excess of 40 hours in an administrative workweek. Compensatory time is time off with pay in lieu of overtime pay for irregular or occasional

overtime work. A compensatory time reference may be found here: **http://www.opm.gov/oca/pay/HTML/COMP.HTM**.

2.3. Compressed Work Schedule: CWS is a fixed work schedule in which the biweekly basic work requirement is scheduled for less than 10 workdays. Employees may work a four-day workweek or a 5/4-9 compressed plan. Under the four-day work week, employees must work 10 hours a day, 40 hours a week and 80 hours in a biweekly pay period. Under the 5/4-9 plan, an employee works eight 9-hour days plus one 8-hour day for a total of 80 hours in a biweekly pay period.

2.3.1. **Overtime and Compensatory Time for CWS.** For employees who work CWS, overtime and compensatory time are hours officially ordered and approved in excess of those hours specified to constitute the compressed schedule.

2.3.2. **Holiday Observance and Pay for CWS.** If a holiday falls on a non-workday of the employee, the employee's preceding workday will be designated as the "in lieu of" holiday. The holiday or "in lieu of" hours will be reflected on the timesheet as the number of hours of the compressed work schedule on that day.

2.3.3. **Use of Annual and Sick Leave for CWS.** When a full day of leave is taken, total hours will reflect the number of hours of the compressed work schedule on that day or days.

2.3.4. **Requesting CWS.** Employees who wish to request CWS should provide a written request to their supervisor citing the CWS plan for which they wish to participate (i.e., four-day workweek or 5/4-9), the requested days off and the day the employee desires to work 8 hours under 5/4-9. For the four-day workweek the employee will select one day of each week to regularly observe as their non-workday. The remaining days require the employee to work 10 hours each day for four days each week, totally 40 hours each week. For the 5/4-9 plan, the employee will identify the eight days in the pay period they will work 9 hours each day, the day they will work 8 hours and the day they will regularly observe as their day off. CWS schedules will constitute the employees basic work requirement and will remain in place until the employee requests in writing to observe the Standard Tour of Duty, FWS or a different 5/4-9 plan. Written requests will be provided to the timekeeper who will follow the procedures in paragraph 6 of this instruction.

3. Compensatory Time for Travel. Section 203 of the Federal Workforce Flexibility Act of 2004 (Public Law 108-411, October 30, 2004) authorized compensatory travel time for time spent by an employee in a travel status. Time in a travel status includes the time an employee spends traveling between the official duty station and a temporary duty station, or between two temporary duty stations, and the usual waiting time that precedes or interrupts such travel. Travel time in connection with an employee's permanent change of station is not time in a travel status. An FWS employee may not earn credit hours for travel because travel in connection with work is not voluntary in nature and does not meet the definition of credit hours.

4. Management/Supervisor Responsibilities. Supervisors must offer employees maximum opportunity to take advantage of these AWS programs. In addition, Office of Personnel Management, *Handbook on Alternative Work Schedules,* **http://www.opm.gov/oca/AWS/INDEX.asp**, requires an affirmative means of ensuring employees meet their hours of work requirement. This requirement must be

met by use of the organization's time and attendance tracking methodology, requiring employees to record their arrival and departure times. Employees may utilize the "Remarks" section to provide justification on credit hours earned if required. Supervisors will alternate employee non-workdays to ensure non-workdays are not all on the same day. Supervisors may temporarily rescind or change work schedules based upon mission reasons with explanation given to the employee as to need and expected duration. Meetings, training and other sessions should be scheduled at times when employees are available. When dates cannot be adjusted and in lieu of overtime, supervisors will adjust work schedules so employees are able to attend. Work schedules will be documented using USAFE Form 96, *CWS Work Schedule Change Request*. Employees on CWS who attend a conferences or training requiring attendance each day of the pay period for 8 hours a day must submit a USAFE Form 96.

4.1. **No additional time accounting device is needed if a supervisor can perform any of the following.** (1) Is visually aware of the employee's work schedule (because he or she works the same schedule as his or her employees). (2) Uses such techniques as making arrangements with other supervisory personnel to provide observation; makes occasional telephone calls to the employee during times the supervisor is not present but the employee is scheduled, or can determine reasonableness of work output for time spent.

5. Employee Responsibilities. It is the employee's responsibility to adhere to the FWS requirements: (1) Request to earn credit hours in advance when possible. Employee requests to work such hours should be reviewed by the supervisor to determine if work demands warrant the employee working the additional hours, and if so, approved before the work has been performed when feasible. (2) Make a reasonable effort to use credit hours earned as soon as work schedule permits. (3) Accurately account for all duty hours. If an employee knowingly submits false time and attendance information, they may be subject to disciplinary action.

6. Time Keeper Responsibilities. The timekeeper or Finance Customer Service Representative, who inputs the organization's time and attendance, must submit a Work Schedule Change memo for each employee and update the work schedule change in DCPS prior to the effective pay period. Additionally, for FWS the timekeeper must use appropriate time and attendance codes for credit hours earned (CD) and credit hours used (CN).

CHRISTOPHER C. SHARPE, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

5 USC Subpart E, Chapter II Secs 6120-6128, Flexible and Compressed Work Schedules

Title 5, Code of Federal Regulations, Part 550, Section 111, *Administration of Overtime Pay*

Title 5, Code of Federal Regulations, Part 610, Subpart D, *Flexible and Compressed Work Schedules*

Privacy Act of 1974

Federal Workforce Flexibility Act of 2004 (Public Law 108-411, October 30, 2004)

DoD 1400.25 SC 1930.15, *Compensatory Time Off for Travel*, December 2008

AFI 36-807, *Weekly and Daily Scheduling of Work and Holiday Observances*, 21 June 1999

AFMAN 33-363, *Management of Records*, 1 March 2008

USAFEI 36-801, *Overtime, Compensatory Time, and Compensatory Time for Travel Request and Approval*, 26 March 2009

Office of Personnel Management, *Handbook on Alternative Work Schedules*

Prescribed Forms

USAFE Form 96, *CWS Work Schedule Change Request,* 5 March 2012

Adopted Forms

AF Form 847, *Recommendation for Change of Publication,* 22 September 2009

Abbreviations and Acronyms

AWS—Alternative Work Schedule

CWS—Compressed Work Schedule

DoD—Department of Defense

FWS—Flexible Work Schedule

NSPS—National Security Personnel System

PP—Pay Period

T&A—Time and Attendance

US—United States

USAFE—United States Air Forces in Europe